



STUDY GUIDE / 01

Foreseeability

An introductory guide to reasonable foreseeability and proximity in the negligence law of England and Wales. Includes psychiatric injury as an example of why foreseeable harm alone is not enough.

1. What does foreseeable mean?

Foreseeable means capable of being reasonably anticipated. In negligence, the question is not simply “Did this defendant actually predict the accident?” It asks whether a **reasonable person in the relevant circumstances** would have anticipated the risk of harm.

An objective test: the defendant's personal statement “I did not think about the danger” does not settle the issue. Apply a reasonable standard to the situation and the information reasonably available at the time, rather than judging with knowledge gained afterwards.

2. Objective does not mean ignoring context

The reasonable person is a legal standard, not a real witness. The circumstances still matter. Consider what was known, what ought reasonably to have been known and the relevant activity or relationship. An objective test does not require the defendant to know everything.

Hindsight means judging an earlier decision using information learned later. A risk that appears obvious after an accident may not have been reasonably apparent beforehand.

3. A simple example - invented

An organiser leaves a heavy speaker on a visibly unstable stand beside a busy walkway. The organiser says, “I never imagined that someone would be hurt.” A reasonable person could nevertheless anticipate injury if it falls. The organiser need not predict the injured person's name or the exact minute of the accident.

Compare a defect that was genuinely hidden and could not reasonably have been discovered in the circumstances. The fact that an accident later happened does not, by itself, prove that its risk should have been anticipated.

Words to recognise

Risk: a possibility of harm. **Objective:** assessed by a reasonable standard. **Subjective:** concerned with what a particular person actually thought. **Claimant:** the person bringing a claim. **Defendant:** the person being sued. **Liability:** legal responsibility.



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Foreseeability and proximity

4. Ask about this claimant and this harm

Do not ask only whether somebody, somewhere could be affected. Identify the claimant, the relevant type of harm and the relationship to the defendant. The analysis can concern a foreseeable class of people; the defendant need not know each person's identity.

Lord Atkin's neighbour principle focuses on people closely and directly affected by conduct whom the defendant should reasonably have in mind. It connects foreseeable harm with a sufficiently close relationship. [1]

5. What does proximity mean?

Proximity means a sufficiently close legal relationship. Physical distance can matter in some categories, but it is not a complete definition. A manufacturer and a distant consumer may have a relevant relationship; a nearby observer does not automatically have a claim.

Keep the questions separate:

Foreseeability: was the relevant risk reasonably anticipatable?

Proximity: was the relationship sufficiently close in law?

The remaining rules: do established principles recognise the duty and this kind of claim? Foreseeability alone does not answer all three.

6. Why does the law limit some claims? [2, 3]

One event can affect people through many different connections. Courts seek workable and coherent limits, particularly for psychiatric injury suffered because someone else was harmed. The concern sometimes called **floodgates** is that an excessively wide rule could expose defendants to an uncertain range of claims.

This does not mean “many claimants, so nobody can recover”. Courts apply legal requirements to each claim. Nor is every duty question decided by an open-ended policy choice: established cases and principles remain the starting point. [4]

A comparison - invented

After an accident, a parent who directly witnesses injury to a child and a distant acquaintance who hears a news report may both become distressed. Their experiences and relationships differ. Foreseeable distress is not, on its own, enough to prove an actionable psychiatric injury claim.



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Alcock: foreseeable suffering and legal limits

7. Alcock v Chief Constable of South Yorkshire Police [2]

Decided on 28 November 1991; reported as [1992] 1 AC 310. Following the Hillsborough football-stadium disaster, claimants sought compensation for psychiatric illness connected with the death or danger suffered by relatives or loved ones. They were not themselves the people directly injured in the crush.

Who won, and why? The Chief Constable won: the House of Lords dismissed the claimants' appeals. Their claims did not satisfy the required combination of reasonable foreseeability and proximity. The shortcoming differed between claimants; for example, the television broadcasts did not establish the required direct connection to the event.

8. Understand the special category [2, 3]

A **secondary victim**, in this context, claims for injury arising from witnessing an accident, or its immediate aftermath, involving harm to another person. For a psychiatric illness claim, ordinary grief or distress alone is insufficient: a recognised psychiatric illness must be established.

Important controls include a close tie of love and affection with the person harmed, closeness to the accident or its immediate aftermath in time and space, and direct perception. Psychiatric illness must also be reasonably foreseeable in a person of normal fortitude - ordinary resilience. These requirements operate together.

Do not assume that a family label proves every requirement, or that anyone at a stadium automatically succeeds. Seeing a news report is not ordinarily equivalent to witnessing the accident directly. Alcock is an illustration of the controls, not a general rule against all psychiatric injury claims.

9. A later clarification: Paul (2024) [3]

In **Paul v Royal Wolverhampton NHS Trust** and the joined appeals, relatives claimed after witnessing deaths associated with alleged failures to diagnose or treat disease. **The healthcare defendants won:** the Supreme Court dismissed the appeals. The medical crises were not analogous to the accidents covered by the secondary-victim exception, and the relevant duty to the relatives was not established.

Paul also explains that a separate requirement for a sudden "shock" or an objectively "horrificing" event is unnecessary. A recognised illness and the other applicable requirements still matter. This guide introduces the issue; a later psychiatric-injury guide can examine it in detail.



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Check your understanding

Try the questions before reading the answers. All invented examples are teaching scenarios, not decided cases.

1. Is foreseeability only about what the defendant actually predicted?

Answer: No. It asks what a reasonable person would anticipate in the relevant circumstances.

2. Does an objective test ignore the available information?

Answer: No. The standard is objective, but the situation and information reasonably available at the time matter.

3. Must the defendant predict the injured person's name and the exact accident?

Answer: No. Consider the relevant risk and foreseeable people; exact personal identity and every detail are not required.

4. True or false: proximity means physical distance only.

Answer: False. It is a legal relationship. Time and place have special importance in some categories, including secondary-victim claims.

5. Does foreseeable distress automatically create a psychiatric injury claim?

Answer: No. A recognised psychiatric illness and the applicable duty and proximity requirements are needed.

6. Who won the House of Lords appeals in *Alcock*?

Answer: The Chief Constable. The claimants did not meet the required combination of foreseeability and proximity.

7. Does the floodgates concern mean all large groups of claims fail?

Answer: No. It concerns principled limits on liability; each claim must be assessed under the legal rules.

8. Is “a horrifying sudden shock” a separate modern requirement?

Answer: No. Paul rejects that separate requirement. It does not remove the need for a recognised illness and the other applicable conditions.

Sources | checked 4 October 2026

[1] *Donoghue v Stevenson* [1932] AC 562. Lord Atkin on the neighbour principle. [Judgment](#) (University of Trier copy).

[2] *Alcock v Chief Constable of South Yorkshire Police* [1992] 1 AC 310. House of Lords, 1991; see the speeches at pp. 395-417. [Law report](#) (IFRC copy).

[3] *Paul v Royal Wolverhampton NHS Trust* [2024] UKSC 1. See paras 51-52, 71-75 and 138-143. [Official judgment](#). [4] *Robinson* [2018] UKSC 4, paras 21-30. [Official judgment](#).